

JUDGMENT SHEET
LAHORE HIGH COURT
RAWALPINDI BENCH, RAWALPINDI
JUDICIAL DEPARTMENT

Criminal Appeal No.155 of 2009
(Ghulam Haider versus The State)

Criminal Appeal No.131 of 2010
(Ibrar Haider versus Sajjad Ali etc.)

Criminal Revision No.65 of 2009
(Ibrar Haider versus Ghulam Haider)

and

Murder Reference No.32/RWP of 2009
(The State versus Ghulam Haider)

JUDGMENT

Date of Hearing	21.09.2015
Appellant by	Ch. Mehmood Akhtar Khan, advocate for appellant in Crl. Appeal No.155 of 2009 and for respondents along with Sajjad Ali, Muhammad Razzaq, Mujahid Ali and Sub. (R) Muhammad Aslam respondents in Crl. A. No.131 of 2010
State by	Mr. Muhammad Waqas Anwar, Deputy Prosecutor General
Complainant by	Mr. Talat Mahmood Zaidi, advocate

Syed Shahbaz Ali Rizvi, J: - This judgment shall dispose of Criminal Appeal No.155 of 2009 titled as Ghulam Haider v. The State filed by Ghulam Haider, appellant against his conviction and sentence, Criminal Appeal No.131 of 2010 titled as Ibrar Haider v. Sajjad Ali etc. filed by Ibrar Haider, complainant against the acquittal of Sajjad Ali, Irshad Ali, Muhammad Razzaq, Mujahid Ali and Sub. (R) Muhammad Aslam, Criminal Revision No.65 of 2009 titled as Ibrar Haider v. Ghulam Haider filed by Ibrar Haider,

complainant, for enhancement of amount of compensation as well as Murder Reference No.32/RWP of 2009 titled as The State v. Ghulam Haider sent by the learned trial court for confirmation or otherwise of sentence of death awarded to Ghulam Haider, appellant, under Section 374 of the Code of Criminal Procedure, 1898, being originated from the same judgment dated 29.04.2009 passed by the learned Addl. Sessions Judge, Chakwal in a private complaint filed under Sections 302, 324, 148 and 149 PPC by Ibrar Haider complainant emanated from case FIR No.7 dated 15.01.2007, offence under Sections 324, 148 and 149 PPC (Section 302 PPC was added subsequently) registered at Police Station Choa Saiden Shah District Chakwal, whereby the appellant was convicted under Section 302(b) PPC and sentenced to death with the direction to pay Rs.1,00,000/- fine, 50% of which was to be paid to the legal heirs of the deceased as compensation and in default thereof to undergo simple imprisonment for six months.

The learned trial court, however, acquitted Sajjad Ali, Irshad Ali, Muhammad Razzaq, Mujahid Ali and Sub. (R) Muhammad Aslam, co-accused of the appellant while giving them the benefit of doubt.

2. Brief facts of the case, as disclosed by Ibrar Haider, complainant (PW-9) son of Muhammad Inayat, the then injured (deceased) in the private complaint (Exh-PL), are that on 15.01.2007, he along with his father Muhammad Inayat (deceased) went to Choa Saiden Shah courts to attend a hearing. At about 08.45 a.m, Ghulam Haider (appellant), Sajjad Ali, Irshad Ali, Muhammad Razzaq, Mujahid Ali and Subedar (R) Muhammad Aslam, accused persons (since acquitted) came there. He along with his father was present in the compound of courts. Irshad Ali, accused (since acquitted) raised *lalkara* that they would not leave them alive. Mujahid Ali, accused (since acquitted) asked Ghulam Haider (appellant) to make fire, upon which, Ghulam Haider (appellant)

made straight fire at Muhammad Inayat (deceased) which landed on his right ribs. He made second fire which also landed on right ribs of his father who fell down. He (complainant) raised hue and cry. Many people present in the courts gathered there.

The motive behind the occurrence, as disclosed by the complainant was previous criminal litigation and due to this grudge, they made murderous assault on Muhammad Inayat (deceased) and caused him injuries. He (complainant) and Shaukat Ali (given up PW) shifted his father to THQ Hospital Choa Saiden Shah.

The complainant further disclosed that his father Muhammad Inayat, the then injured (deceased) got registered above said case FIR against the accused persons. His father (Muhammad Inayat, deceased) due to the said injuries died on 09.04.2007, upon which, offence under Section 302 PPC was added. The post mortem examination on the dead body of his father was conducted at DHQ Hospital, Chakwal. The police in connivance with the accused party declared Mujahid Ali, Irshad Ali, Sajjad Ali, Muhammad Aslam and Muhammad Razzaq as innocent, hence the complainant filed instant private complaint.

3. Ghulam Haider (appellant) was arrested in this case on 22.01.2007 by Muhammad Iqbal, ASI (CW-1) who, on 26.01.2007, while in police custody, after making disclosure, got recovered .30 bore pistol (P-1) along with three live bullets (P-2/1-3) which was taken into possession vide recovery memo Exh-PH.

4. Learned trial court after recording the cursory statements of the witnesses summoned the appellant and his co-accused to face the trial and after observing all the pre-trial codal formalities, charge sheeted the appellant and his co-accused (since acquitted) to which they pleaded not guilty and claimed trial.

5. The prosecution, in order to prove its case, produced as many as ten witnesses during the trial whereas, Muhammad Iqbal, ASI and Khizer Hayat, SI were examined as CW-1 and CW-2, respectively. Ibrar Haider, complainant (PW-9) furnished the ocular account of the case. Muhammad Ali Shah, HC/99 (PW-7) is the witness of alleged recovery of .30 bore pistol (P-1) along with three live bullets (P-2/1-3) at the instance of the appellant.

The medical evidence was furnished by Dr. Guldaraz (PW-1) and Dr. Abdul Majeed (PW-2). Dr. Guldaraz (PW-1), on 15.01.2007 at 09.50 a.m, medically examined Muhammad Inayat (deceased), in injured condition, and noted the following injuries on his person: -

- “1 A lacerated wound deep to right side of lower ribs which was a fire-arm wound measuring 1.4 x 1.4 cm situated 6 inches from right nipple of breast and 8½ from umbilicus. There was a corresponding hole in vast kot and kameez which was signed by me. There was no blackening or tattooing around the wound.
- 2 A fire-arm wound measuring 0.4 x 0.4 cm deep to the right side of lower ribs situated 5 inches from right nipple of breast and 7.5 cm from umbilicus. There was a corresponding hole present in vast kot and Kameez. This was an entry wound. Both injuries were caused with fire arm weapon with duration of ½ to 1 hour from my examination...”

Dr. Abdul Majeed (PW-2), on 09.04.2007 at 12.45 p.m, conducted the post mortem examination on the dead body of Muhammad Inayat (deceased) and noted the following injuries: -

- “1. Dressing present on the anterior side of the central parts of abdomen and chest. On removing the dressing infected wound 24 cm x 5 cm present on the central parts of the anterior side of lower chest and upper parts of the abdomen.
2. Infected lacerated wound 3 x 2 cm on right side of the chest located 14 cm from the right nipple and 16 cm from the midline.

3. An infected wound present on the right side of the abdomen side 2 cm x 3 cm located 4 cm from the midline.
4. An oblique straight post operative surgical scar was present under right side of abdomen. Size was 15 cm x 2 cm.”

In his opinion, death was due to cardio respiratory failure due to septicemia by fistulae (adherent of intestines). Injuries to intestines were ante mortem in nature and sufficient to cause death in ordinary course of nature. Injuries were caused on 15.01.2007 and death occurred on 09.04.2007.

Muhammad Iqbal, ASI (CW-1) and Khizer Hayat, SI (CW-2) are the Investigation Officers of this case. Muhammad Arif, Patwari Halqa (PW-4) prepared scaled site plan (Exh-PF) of the place of occurrence whereas, rest of the witnesses are formal in nature.

6. The statements of the appellant along with his co-accused (since acquitted), under Section 342 of the Code of Criminal Procedure, 1898, were recorded. The appellant refuted the allegations levelled against him and professed his innocence. In reply to a question that as to “*Why this case against you and why the PWs deposed against you?*”, the appellant deposed as under:-

“I am married and I have three minor children out of two wives. I am the only bread winner of my family. I have got nothing to do with inter-se enmity of my brother Gulaster with Muhammad Inayat deceased. As a matter of fact, Muhammad Gulaster had married his daughter to the son of Muhammad Inayat deceased. It was decided between above said Gulaster and Inayat deceased at that time that a gesture of reciprocity, Muhammad Inayat marry his daughter to the son of Gulaster. Due to inter-se difference of Muhammad Inayat and Gulaster, a cross case u/s 324 P.P.C was registered against them. Neither I was a witness in that case nor I was injured. As the reciprocal arrangement between Gulaster and Muhammad Inayat never materialized our whole family excommunicated Muhammad Gulaster for his act of giving his daughter to a stranger family till todote we brothers are not on speaking terms with each other. I cannot from the inner recesses of my

heart think of avenging the enmity of Gulaster from Muhammad Inayat deceased. As a matter of fact, I have been made a scape goat and well before the instant occurrence. I was in the custody of police of P.S Choa Saidan Shah. While being in custody of the police, how could I participate in such a dastard and nefarious act of murder of Muhammad Inayat. My name does not find mention in the F.I.R No.23 Mark-B and similarly, I was not even witness in the cross cases mentioned above. The only fault at my part is that I am brother of Gulaster and a poor fellow who is hardly earning his livelihood.”

7. The appellant neither opted to appear as his own witness on oath as provided under Section 340(2) of the Code of Criminal Procedure, 1898 in disproof of the allegations levelled against him nor did he produce evidence in his defence.

8. The learned trial Court vide its judgment dated 29.04.2009, found the appellant guilty, convicted and sentenced him as mentioned above whereas, acquitted his co-accused persons namely, Sajjad Ali, Irshad Ali, Muhammad Razzaq, Mujahid Ali and Sub. (R) Muhammad Aslam while giving them the benefit of doubt.

9. Learned counsel for the appellant, inter alia, contends that the appellant has falsely been implicated in this case due to previous enmity; that there is delay of about one hour and fifteen minutes in reporting the matter to the police whereas, the distance between the place of occurrence and the police station is only two kilometers; that the prosecution produced only one eyewitness Ibrar Haider (PW-9) to prove the ocular account whereas, Shaukat Ali, PW was given up; that there is no corroboration to the statement of Ibrar Haider (PW-9); that the medical evidence is in conflict with the ocular account; that the doctor who medically examined Muhammad Inayat (deceased), in injured condition, has not mentioned whether injury No.1 was an entry wound or an exit wound; that five co-accused of the appellant have already been acquitted by the learned trial court and the evidence which has been disbelieved qua the

acquitted accused persons cannot be believed against the appellant until and unless there is strong independent corroboration which is very much lacking in this case; that the alleged recovery of crime weapon at the instance of the appellant is inconsequential as the crime empty secured from the place of occurrence was sent to the Forensic Science Laboratory three months after the alleged recovery of crime weapon; that the motive is not directly assigned to the appellant; that prosecution has failed to prove its case against the appellant beyond any shadow of reasonable doubt; that this appeal may be accepted, conviction and sentence of the appellant may be set aside, he may be acquitted and the Murder Reference be answered in the negative.

10. Conversely, learned Deputy Prosecutor General assisted by learned counsel for the complainant vehemently opposes the contentions raised by the learned counsel for the appellant and, inter alia, maintains that there is no deliberate or conscious delay in reporting the matter to the police; that it is the prerogative of the prosecution to produce as many witnesses as it thinks fit and that it is the quality and not the quantity of the evidence which weighs with the courts; that it is an established proposition of law that the conviction can be passed on the basis of statement of a solitary witness; that case of the acquitted co-accused of the appellant is distinguishable with that of the present appellant as neither they were armed with any weapon nor they caused any injuries to the deceased or any of the witnesses; that prosecution case finds corroboration from the medical evidence; that the prosecution case is further corroborated by the evidence of recovery of crime weapon at the instance of the appellant; that the prosecution has proved the motive part of the occurrence; that the prosecution has proved its case against the appellant beyond any reasonable doubt; that this appeal may be dismissed and the Murder Reference be answered in the affirmative. Further contends that appeal filed by Ibrar Haider (PW-

9) against the acquittal of co-accused of the appellant may also be allowed, the respondents be convicted and sentenced according to law; that Criminal Revision filed by the complainant may also be allowed and amount of compensation be enhanced.

11. We have heard the arguments of learned counsel for the appellant, learned Deputy Prosecutor General assisted by learned counsel for the complainant and also scanned the record with their assistance.

12. The daylight occurrence of this case, as per prosecution case, took place on 15.01.2007 at 08.45 a.m. in the compound of courts of Choa Saiden Shah from where, the injured was immediately shifted by his son Ibrar Haider (PW-9) to Hospital where, on receiving information, Muhammad Iqbal, ASI (CW-1) after obtaining permission from the Medical Officer through application (Exh-PB) regarding the fitness of the then injured Muhammad Inayat (deceased) recorded his statement (Exh-CW-1/B) at 10.00 a.m, within one hour and fifteen minutes of the occurrence which reflects that the matter was reported to the police by the then injured Muhammad Inayat (deceased) in natural course of events and without any deliberate or conscious delay.

13. Because of the death of the complainant Muhammad Inayat on 09.04.2007 due to the injuries sustained during the occurrence, Ibrar Haidere, his son is the only eyewitness who appeared as PW-9 to prove the prosecution case through the ocular account as the other witness Shaukat Ali who also removed Muhammad Inayat, the then injured (deceased) along with Ibrar Haider to Hospital, Choa Saiden Shah was given up by the prosecution being won over. By now, it is an established proposition of law that the conviction can be based upon the statement of even a solitary witness if it inspires confidence and carries unimpeachable character. Here we are guided by the dictum of law laid down by the Hon'ble Supreme Court of Pakistan

in the case reported as Muhammad Mansha v. The State (2001 SCMR 199) wherein, at page 204, it was enunciated as under:-

“6. ...The question as formulated hereinabove as to whether conviction could have been awarded on the basis of solitary statement of a witness has been examined at first instance in the light of Article 17 of the Qanun-e-Shahadat Order, 1984, (section 134 of the Evidence Act, 1872). The said Article is reproduced hereinbelow for ready reference:--

“17. Competence and number of witnesses.---(1) The competence of a person to testify and the number of witnesses required in any case shall be determined in accordance with the Injunctions of Islam as laid down in the Holy Qur'an and Sunnah.

- (2) Unless otherwise provided in any law relating to the Enforcement of Hudood or any other special law--
 - (a) in matters pertaining to financial or future obligations, if reduced to writing, the instrument shall be attested by two men, or one man and two women, so that one may remind the other, if necessary, and evidence shall be led accordingly; and
 - (b) in all other matters, the Court may accept, or act on, the testimony of one man or one woman, or such other evidence as the circumstances of the case may warrant.”

7. A bare perusal would reveal that the language as employed in the said Article 17(1)(b) is free from any ambiguity and no scholarly interpretation is required. The provisions as reproduced hereinabove of the said Article would make it abundant clear that particular number of witnesses shall not be required for the proof of any fact meaning thereby that a fact can be proved only by a single witness “it is not seldom that a crime has been committed in the presence of only one witness, leaving aside those cases which are not of uncommon occurrence, where determination of guilt depends entirely on circumstantial evidence. If the Legislature were to insist upon plurality witnesses, case where the testimony of a single witness only could be available in proof of the crime, would go unpunished. It is here that the discretion of Presiding Judge comes into play. The matter thus must depend upon the circumstances of each case and the quality of the evidence of the single witness whose testimony has to be either accepted or rejected. If such a testimony is found by the Court to be entirely reliable, there is no legal impediment to the conviction

of the accused person on such proof. Even as the guilt of an accused person may be proved by the testimony of a single witness, the innocence of an accused person may be established on the testimony of a single witness, even though considerable number of witnesses may be forthcoming to testify to the truth of the case for the prosecution. The Court is concerned with the quality and not with the quantity of the evidence necessary for proving or disproving a fact". (Principles and Digest of the Law of Evidence by M. Monir, page 1458)."

We are further fortified by another judgment passed by the Hon'ble Supreme Court of Pakistan in the case of Niaz-ud-Din and another v. The State and another (2011 SCMR 725) wherein, the Hon'ble Supreme Court was pleased to observe as under: -

"11. ...There is apt observations appearing in Allah Bakhsh v. Shammi and others (PLD 1980 SC 225) that "even in a murder case conviction can be based on the testimony of a single witness, if the Court is satisfied that he is reliable." The reason being that it is the quality of evidence and not the quantity which matters..."

We have observed that Ibrar Haider (PW-9) who being disappointed by the investigation in police case, filed private complaint against the appellant and his co-accused persons (since acquitted) without any deviation from his earlier statement recorded under Section 161 of the Code of Criminal Procedure, 1898 and without being discrepant with the statement of his father Muhammad Inayat, deceased (Exh-CW-1/B). During the cross examination, he remained firm to his stance. Despite cross examination at considerable length, no discrepancy or inconsistency with rest of the prosecution evidence could be surfaced even after about two years, elapsed between the occurrence and his statement before the learned trial court. His statement before the learned trial court remained unswerving. He remained coherent especially to the extent of role assigned by him to Ghulam Haider, appellant and by his father Muhammad Inayat (deceased) in his statement (Exh-CW-1/B). So far as the presence of Ibrar Haider (PW-9) at the scene of occurrence and the contention of

learned counsel for the appellant qua venue of incident declaring the same two kilometers away from the court compound and that the occurrence was un-witnessed are concerned, the same has sufficiently and convincingly been explained by him that could not be rebutted by the defence through any evidence. The investigation officer took the blood stained earth, besides the crime empties from the place of occurrence shown in un-scaled and scaled site plans (Exh-CW-1/E-1 and Exh-PF), respectively which was confirmed by the positive reports of Chemical Examiner and Serologist. Similarly, no person from the court compound or otherwise ever appeared in evidence to deny the happening of fateful incident at the place and time narrated by the complainant and his, then injured, father. As regards the non-appearance of any independent person i.e. advocate or clerk in support of prosecution case, we are of the opinion that unfortunately due to prevailing sense of insecurity in the society, people normally do not come forward and dare to become witness in such like cases to avoid the wrath of accused party. Reliance in this respect is placed on the cases of Muhammad Ahmad and another v. The State and others (1997 SCMR 89). Even otherwise, Ibrar Haider (PW-9) was having no reason to falsely implicate the appellant Ghulam Haider in a daylight occurrence of the murder of his father in the compound of courts at Choa Saidu Shah as there was no direct ill will or enmity of the deceased against Ghulam Haider, appellant. Had there been any possibility of substitution, Gulaster, brother of appellant Ghulam Haider who was accused of motive occurrence case, would also have been implicated in this case. Even otherwise, substitution is a rare phenomenon especially in such like cases. Hence, the arguments furnished by the learned counsel in this regard are repelled.

As far as the point raised by learned counsel for the appellant that the complete description of injury No.1 that whether the same was an entry wound or exit has not been given by the doctor while

injury No.2 has been declared by the senior Medical Officer (PW-1), as entry wound, is concerned, we have observed that Dr. Guldaraz (PW-1) though has not mentioned that injury No.1 was entry wound yet at the same time, the said injury has not been declared by him as an exit wound too. There is no denial to the fact that the same wound is also having corresponding holes in the waistcoat and Kameez of the deceased signed by the Medical Officer (PW-1). Moreover, the appellant is the only accused who has been assigned the role of causing both firearm injuries to Muhammad Inayat (deceased) in the broad daylight and at a busy place, right in front of the court of a magistrate. In this view of the matter, this argument furnished by learned counsel for the appellant is of no consequence to the defence, in the light of the circumstances of this case.

With regard to the contention raised by learned counsel for the appellant that the learned trial court has acquitted five co-accused persons of the appellant while disbelieving the same prosecution evidence, we are of the opinion that the rule of *falsus in uno falsus in omni bus* is not applicable in our judicial system and the courts are under burden to sift grain from the chaff and that has been done by the learned trial court in this case. Even otherwise, the case of the co-accused persons (since acquitted) is on different footings from that of the appellant Ghulam Haider as none of them is assigned any injury to the deceased or any other witness. All the said accused persons were not armed with any weapon at the time of occurrence. During the successive investigations, they were found innocent by the investigation officers while the appellant has been attributed two repeated fire shots causing firearm injuries to the deceased that eventually resulted into unnatural death of Muhammad Inayat (deceased). Hence, the argument of learned counsel for the appellant is not tenable.

14. The solitary statement of Ibrar Haider (PW-9) also finds corroboration from the statement (Exh-CW-1/B) of Muhammad

Inayat (deceased) recorded by Muhammad Iqbal, ASI/investigation officer (CW-1) when he was present, in injured condition, at Tehsil Headquarters Hospital, Choa Saiden Shah after the issuance of certificate (Exh-PB) by the Medical Officer, regarding his fitness to make statement. The medico-legal certificate (Exh-PA) of Muhammad Inayat (deceased) also reflects that on 15.01.2007 at 09.15 a.m, when Muhammad Inayat, the then injured (deceased) was medically examined by Dr. Guldraza (PW-1), he was well oriented in time and space. It is an established proposition that no specific mode of recording the dying declaration is prescribed, however, it is very much relevant to prove that the statement was actually made by the deceased being well oriented in time and space at the relevant time without any extraneous influence. In this case, the statement of Muhammad Iqbal, ASI (CW-1) supported by the statement of Ibrar Haider (PW-9) coupled with the certificate (Exh-PB) issued by Dr. Guldaraz (PW-1) who during his statement also verified the same fact, sufficiently prove the fact of statement got recorded by the deceased, then injured, to Muhammad Iqbal, ASI (CW-1). Finding it expedient and advantageous, the relevant part of the statement of Dr. Guldaraz (PW-1) is reproduced as under: -

“Police also presented an application to me for his fitness about his statement which I allowed and it also bears my signatures and the same is Ex.PB...”

The promptitude in recording the statement (Exh-CW-1/B) at 10.00 a.m. regarding the incident that took place at 08.45 a.m. rules out the possibility of any unchaste influence.

So far as the contention raised by learned counsel for the appellant that the deceased was not under the apprehension of death at that time is concerned, we are of the considered view that there is no cavil to the fact that Muhammad Inayat (deceased), the then injured, was available in the emergency of the hospital with two firearm injuries on the vital part of his body and due to his precarious condition, he was immediately referred to the DHQ, Hospital,

Chakwal for further treatment. No plausible reason to disbelieve the statement (Exh-CW-1/B) of Muhammad Inayat (deceased) is available in this case which in our view sufficiently corroborates the statement of eyewitness Ibrar Haider (PW-9) and the ocular account has sufficiently proved the case of the prosecution against Ghulam Haider, appellant.

15. As far as the medical evidence is concerned, we have noticed that as per statement of Dr. Abdul Majeed (PW-2), the deceased Muhammad Inayat met his unnatural death due to septicemia developed at the site of intestinal injuries caused by appellant Ghulam Haider to the deceased which finally resulted into the death of injured Muhammad Inayat after his long stay of about four months in the hospital.

16. As regards recovery of crime weapon .30 bore pistol (P-1) along with three live bullets (P-2/1-3) at the instance of the appellant and positive report of the Forensic Science Laboratory (Exh-PQ), we have noticed that the crime empty was secured from the place of occurrence on 15.01.2007, the appellant was arrested in this case on 22.01.2007 and the pistol was allegedly recovered at his instance on 26.01.2007 whereas both, crime empties and .30 bore pistol were sent to the said Laboratory on 25.04.2007 i.e. after three months and ten days of the occurrence and after about three months of the arrest of the appellant. It is, by now, a well established proposition of law that if the crime empty is sent to the Forensic Science Laboratory after the arrest of the accused or together with the crime weapon, the positive report of the said Laboratory loses its evidentiary value. Reliance in this respect is placed on the case of Jehangir v. Nazar Farid and another (2002 SCMR 1986), Israr Ali v. The State (2007 SCMR 525) and Ali Sher and others v. The State (2008 SCMR 707). In Israr Ali's case, the Hon'ble Supreme Court has observed that when the crime empties are sent to Forensic Science Laboratory with delay, the recovery of the same does not provide strong corroboration qua the prosecution version.

17. So far as the evidence of motive is concerned, we have observed that the appellant is not directly connected with the motive of the occurrence. He was neither an accused nor a witness in the motive criminal case though his brothers Gultasar and Sajjad were accused persons in the said case yet the appellant himself had nothing to do with the same.

18. In the light of above discussion and having guidance from the esteemed judgments passed by the Hon'ble Supreme Court of Pakistan in the cases of Muhammad Nisar v. The State (2006 SCMR 161), Muhammad Nadeem alias Deemi v. The State (2011 SCMR 872) and Musa v. The State (2008 SCMR 997), we are of the opinion that even if we exclude the evidence of recovery of crime weapon and evidence of motive from consideration, the prosecution has successfully proved its case through confidence inspiring ocular account furnished by Ibrar Haider, (PW-9) which is strongly corroborated by the medical evidence, the dying declaration of Muhammad Inayat (deceased) and the result of investigation that has led us to an irresistible conclusion that the learned trial court has rightly convicted Ghulam Haider (appellant) through the impugned judgment.

Now coming to the quantum of sentence awarded to the appellant, we are of the view that our observations qua the alleged recovery of crime weapon and evidence of motive expressed in the preceding paragraphs coupled with the admitted acquittal of five co-accused of the appellant are sufficient mitigating circumstances necessitating the reduction in quantum of sentence awarded to the appellant by the learned trial court, therefore, in our opinion alternative sentence of imprisonment for life to Ghulam Haider (appellant) shall meet the ends of justice. In this regard, guidance is respectfully sought from the case of Muhammad Riaz and another v.

The State and another (2007 SCMR 1413) wherein, the Hon'ble Supreme Court was pleased to observe as under:-

“7. ...No doubt normal penalty for an act of commission of Qatl-i-Amd provided under law is death but since life imprisonment also being a legal sentence for such offence must be kept in mind wherever the facts and circumstances warrant mitigation of sentence, because no hard and fast rule can be applied in each and every case.”

We are also fortified by the case of Ghulam Mohy-ud-Din alias Haji Babu and others v. The State (2014 SCMR 1034) wherein, the Hon'ble Supreme Court of Pakistan has held that if a single doubt or ground is available, creating reasonable doubt in the mind of Court/Judge to award death penalty or life imprisonment, it would be sufficient circumstance to adopt alternative course by awarding life imprisonment instead of death sentence.

19. For what has been discussed above, the conviction of Ghulam Haider (appellant) is maintained, however, his sentence is altered from death to imprisonment for life. We have observed that the learned trial court has directed the appellant to pay Rs.1,00,000/- as fine and if recovered 50% of the same was directed to be paid to the legal heirs of the deceased as compensation. While doing so the learned trial Judge remained oblivious of the basic law enunciated in Section 302(b) PPC that does not provide sentence of fine at all. Hence, the sentence of fine imposed by the learned court below is set aside. However, the appellant Ghulam Haider shall pay compensation of Rs.1,00,000/- to the legal heirs of the deceased as provided under Section 544-A of the Code of Criminal Procedure, 1898 and in default thereof, the appellant shall further undergo simple imprisonment for six months. He is also awarded the benefit of Section 382-B of the Code of Criminal Procedure, 1898.

20. Consequently, with the above modification in quantum of sentence of Ghulam Haider (appellant), **Crl. Appeal No.155 of 2009** is hereby dismissed.

21. As regards **Criminal Appeal No.131 of 2010** filed by Ibrar Haider (PW-9), son of Muhammad Inayat (deceased) against the acquittal of Sajjad Ali, Irshad Ali, Muhammad Razzaq, Mujahid Ali and Sub. (R) Muhammad Aslam (respondents No.1 to 5), we have noticed that only two fire shots were made at deceased Muhammad Inayat which are specifically attributed to Ghulam Haider, appellant. Sajjad Ali, Irshad Ali, Muhammad Razzaq, Mujahid Ali and Subedar (R) Muhammad Aslam (respondents No.1 to 5) were not armed with any weapon at the time of occurrence and they have not caused any injury to the deceased or any of the prosecution witnesses. Nothing was recovered from them during the course of investigation rather they were found innocent. Even otherwise, it is, by now well established principle of law that when a court of competent jurisdiction acquits an accused of the charge, double presumption of innocence is attached to the said acquittal and until and unless that is found arbitrary, fanciful, perverse and against the record or has led to grave miscarriage of justice, the said acquittal is not interfered with. Reference can advantageously be made to the case of Iftikhar Hussain and others v. The State (2004 SCMR 1185), Haji Amanullah v. Munir Ahmad and others (2010 SCMR 222), Jehangir v. Aminullah and others (2010 SCMR 491) and Bashir Ahmad v. Fida Hussain and 3 others (2010 SCMR 495).

Keeping in view the afore-referred circumstances coupled with guidelines given by the Apex Court of the country in the above quoted precedent case law, this Court is of the affirm view that there is nothing in the impugned judgment, to the extent of acquittal of respondents Sajjad Ali, Irshad Ali, Muhammad Razzaq, Mujahid Ali and Sub. (R) Muhammad Aslam, which could be deemed to be

arbitrary, capricious, fanciful or against the record to warrant interference by this Court. Furthermore no grave miscarriage of justice has been done due to acquittal of the said respondents. The nutshell of the above discussion is that this appeal has no merits, which is hereby dismissed and notice issued to the respondents is hereby withdrawn.

22. As regards **Criminal Revision No.65 of 2009** filed by Ibrar Haider (PW-9) for enhancement of amount of compensation, suffice to observe that we, in paragraph No.19 above, have already set aside the imposition of fine upon the appellant and directed the appellant to pay Rs.1,00,000/- as compensation to the legal heirs of the deceased as provided under Section 544-A of the Code of Criminal Procedure, 1898. In this view of the matter, Criminal Revision No.65 of 2009, having lost its relevance, is dismissed *in limine*.

23. **Murder Reference No.32/RWP of 2009** is answered in the **NEGATIVE** and sentence of death awarded to Ghulam Haider (convict) is **NOT CONFIRMED**.

(Raja Shahid Mehmood Abbasi)
Judge

(Syed Shahbaz Ali Rizvi)
Judge

APPROVED FOR REPORTING:

Judge

Judge

'Javaid'